

MILITARILY CRITICAL TECHNICAL DATA AGREEMENT

For use with the Joint Certification Program
(Read the Agency Disclosure Notice and Instructions on the back before completing this form.)

OMB No. 0704-0207
OMB approval expires
20281231

1. TYPE OF SUBMISSION (X one) ☐ a. INITIAL ☐ b. REVISION ☐ c. RENEWAL	
2. ENTITY OR INDIVIDUAL DATA (Referred to as a 'Certified Contractor' upon approval by the Joint Certification Program Office)	
a. NAME OF ENTITY OR SOLE PROPRIETOR (must match CAGE registry)	b. ADDRESS (Physical Address of CAGE, including P.O. if applicable)
c. NAME (For Use by UNIVERSITY, COLLEGE, or HIGHER LEARNING INSTITUTION Only)	
d. CAGE CODE (Mandatory)	
3. DATA CUSTODIAN (Primary)	3.1. DATA CUSTODIAN (Alternate)
a. NAME (First, Middle Initial, Last):	a. NAME (First, Middle Initial, Last):
b. TELEPHONE NUMBER (Direct line):	b. TELEPHONE NUMBER (Direct line):
c. OFFICIAL TITLE:	c. OFFICIAL TITLE:
d. BUSINESS EMAIL ADDRESS:	d. BUSINESS EMAIL ADDRESS:
4. DESCRIPTION OF RELEVANT BUSINESS ACTIVITY	
5. AS A CONDITION OF RECEIVING MILITARY CRITICAL TECHNICAL DATA, THE ENTITY AND/OR INDIVIDUAL CERTIFIES THAT:	
a. They acknowledge all responsibilities under applicable U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license from the U.S. Government prior to the release of military critical technical data within the United States) or applicable Canadian export control laws and regulations, and agree not to disseminate militarily critical technical data in a manner that would violate applicable U.S. or Canadian export control laws and regulations.	d. That the CITIZENSHIP/RESIDENCY STATUS of the individual(s) designated by name in Item 3 above, who will act as custodian(s) of the militarily critical technical data on behalf of the entity, is/are citizen(s) or person(s) admitted lawfully for permanent residence into (X) 1 or (X) 2 ☐ 1. THE UNITED STATES ☐ 2. CANADA Data Custodian(s)'s lawful residency must be in the entity's country of certification.
b. The data is required to bid or perform on a contract with any agency of the U.S. Government or the Canadian Government or for other legitimate business activities in which the contractor is engaged or plans to engage as specifically disclosed in item 4.	e. They are not themselves debarred, suspended or otherwise ineligible to perform on U.S. or Canadian Government contracts, and have not violated U.S. or contravened Canadian export control laws and have not had a certification revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR.
c. They will not provide access to militarily critical technical data to persons other than their employees or eligible persons designated by the certified entity to act on their behalf unless such access is permitted by U.S. DoDD 5230.25, Canada's TDCR or the U.S. or Canadian Government agency that provided the technical data.	f. No person employed by, or eligible persons designated by the certified entity to act on their behalf, who will have access to military critical technical data is disbarred, suspended, or otherwise ineligible to perform on U.S. or Canadian Government contracts or has violated U.S. or contravened Canadian export control laws or has had a certification revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR.
6. AUTHORIZED ENTITY REPRESENTATIVE CERTIFICATION	
I certify that the information and certifications made by the Data Custodian and myself are true, complete, and accurate to the best of my knowledge and belief and are made in good faith. I understand that a knowing and willful false statement on this form can be punished by fine or imprisonment or both. (For U.S. contractors see U.S. Code, Title 18, Section 1001 and for Canadian contractors see the Defense Production Act.)	
a. NAME OF INDIVIDUAL (First, Middle Initial, Last)	b. TITLE
c. SIGNATURE	d. DATE SIGNED
7. CERTIFICATION ACTION (For JCPO Use Only)	
a. CERTIFICATION APPROVED. This certification number, along with a statement of intended military critical technical data use, must be included with each request for militarily critical technical data.	b. CERTIFICATION NUMBER
c. EXPIRATION DATE (YYYYMMDD)	
8. DoD OFFICIAL (For JCPO Use Only)	
a. NAME OF U.S. REPRESENTATIVE (First, Middle Initial, Last)	a. NAME OF CANADIAN REPRESENTATIVE (First, Middle Initial, Last)
b. TITLE	b. TITLE
c. SIGNATURE	d. DATE SIGNED
c. SIGNATURE	d. DATE SIGNED

INSTRUCTIONS FOR COMPLETING DD FORM 2345

All information must be legible, handwritten forms will not be accepted.

Submit your completed DD Form 2345 as a "pdf" attachment to: JCP-ADMIN@DLA.MIL

AGENCY DISCLOSURE NOTICE

The public reporting burden for this collection of information is estimated to average 1 hour per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing the burden, to the Department of Defense, Washington Headquarters Services, at whs.mc-alex.esd.mbx.dd-dod-information-collections@mail.mil. Respondents should be aware that notwithstanding any other provision of law, no person shall be subject to any penalty for failing to comply with a collection of information if it does not display a currently valid OMB control number.

1. Mark only one box: 'INITIAL' if this is your first application; 'REVISION' (of a previously accepted submission) showing revised information i.e., new addresses or business description; 'RENEWAL' if your certification is nearing the expiration date or was canceled after expiration.

2a. For an entity, show full name of CAGE or institution. For an individual, show full name (First, Middle Initial, Last). The information entered here must match the information in the CAGE registry

2b. Enter the physical address of the entity or individual making application. If a P.O. Box is used for mailing purposes, include street address as well.

3. Data Custodian: Show the name, business title, telephone number (including area code – direct line) and e-mail address of the individual(s) who will receive export controlled technical data / critical technology data and be responsible for its further dissemination.

4. Describe the relevant business activity of the entity in block 2 with sufficient detail for the U.S. or Canadian Government agency controlling the data to determine whether the militarily critical technical data that you may request over time is reasonably related to your stated business activity. NOTE: The information must fit in the space provided in block 4 on the form. Attachments to block 4 are NOT ALLOWED.

For All Applicants you must specifically address the following in **block 4**:

1. Indicate if you are a Prime or Sub-Contractor (If applicable).
2. If a Sub, include the Prime's CAGE and Address
3. Describe what you do: (i.e.: manufacturer, distributor, data broker, consultant, other)
4. Describe what type(s) of equipment/material/service you manufacture. Provide commodity NAICS (North American Industry Classification System) or FSC (Federal Supply Class) if known).
5. Is your equipment/material/service related to the United States Munitions List (USML) or Commerce Control List (CCL)? If yes, state what category.

For U.S. Applicants:

6. Are you registered with Directorate of Defense Trade Controls (DDTC)? If yes, state so and provide documentation.

For Canadian Applicants:

6. Are you registered with the Controlled Goods Program? If yes, state so and provide Controlled Goods number (CG#####).
7. Do you possess an Export Control License? If yes, state so and provide documentation in your submission.
8. State your purpose for technical data access: (Bid on DOD solicitations, exchange of data, conference attendance, research, and development)
9. Do you require access to a system to obtain technical data? 1. I do not require system access to systems OR 2. I require access to SAM.gov, DIBBS (include User IDs)
10. Indicate the government agency or 3rd party requiring you obtain JCP Certification. Include full Point of Contact information.

5a. If the location of the entity identified in Item 2.a. is in the United States, the Data Custodian(s) must be a U.S. citizen, or a person admitted lawfully for permanent residence into the United States. If the location of the entity is in Canada, the individual named in Item 3 may be either a Canadian or U.S. citizen or a person admitted lawfully for permanent residence into Canada.

Note: re: 5. If certifications of 5e. and 5f. cannot be made, provide in a separate document, a full description of any extenuating circumstances which may give sufficient reason to accept your certification.

6. If Item 2 identifies an individual, that individual must sign. If Item 2 identifies an entity, a person with authority to legally obligate the entity to a contract must sign.

7. Certification Approval for JCPO use only: a. APPROVED. The U.S./Canada JCPO has assigned the entity or individual identified in Item 2.a., a Certification Number which will identify the individual or entity as a "certified contractor" as defined in U.S. DoDD 5230.25 or Canada's TDCR. The acceptance is valid upon approval until the expiration date in 7c unless sooner revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR. If at any time a certified contractor is unable to adhere to the conditions under which a certification was accepted, the contractor's certification is considered void, and the contractor will, either submit a revised certification or surrender all export controlled technical data/critical technology data obtained under this agreement, to the data controlling offices specified on the documents. b. NUMBER. Certification Number c. EXPIRATION DATE. Date Certification will expire. If not renewed it will be canceled.

LEGEND:

DoD = Department of Defense

DoDD = Department of Defense Directive

U.S./Canada - JCO = United States/Canada Joint Certification Office

TDCR = Technical Data Control Regulations

Militarily Critical Technical Data = Unclassified technical data as governed by U.S. DoDD 5230.25 or Canada's TDCR.

More detailed instructions (written and video) are available at: <https://www.dla.mil/Logistics-Operations/Services/JCP/>